

Court No. - 36

Case :- CONTEMPT APPLICATION (CIVIL) No. - 1736 of 2021

Applicant :- Smt Aneeta Rawat

Opposite Party :- Sri Mahendra Prasad, Executive Engineer,

Counsel for Applicant :- Dhirendra Kumar Srivastava

Hon'ble Mahesh Chandra Tripathi,J.

Heard learned counsel for the applicant through video conferencing.

By order dated 9.7.2019 passed in Writ C No. 21793 of 2019 filed by the applicant, the Court directed as under:

"The matter with regard to the grant of sanction of electric connection is to be considered by the Executive Engineer concerned in accordance with Annexure 4.2 of the U.P. Electricity Supply Code, 2005.

In view of the aforesaid facts and circumstances, we dispose off the writ petition with a direction to the Executive Engineer concerned to consider the matter of grant of electric connection to the petitioner in accordance with law and if necessary, not to insist for the no objection certificate if the purpose could be served by the submission of an indemnify bond by the petitioner as the husband of the petitioner appears to be the natural heir of late Daya Ram, the actual owner of the house.

The Executive Engineer shall take action in the matter on verification of the records within a period of one month from the date of copy of this order along with comprehensive representation is received by him from the petitioner. "

Learned counsel for the applicant submits that a certified copy of the aforesaid order was submitted for compliance before the opposite party but the opposite party has wilfully not complied with the order and, thus, has committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act, 1971.

Prima facie a case of contempt has been made out. However, considering the facts and circumstances of the case, one more opportunity is afforded to the opposite party to comply with the aforesaid order of the Court within three weeks from the date of production of a copy of this order.

The applicant shall supply a duly stamped registered envelope addressed to the opposite party and another self-addressed stamped envelope to the office within one week from today. The office shall send a copy of this order along with the self-

addressed envelope of the applicant with a copy of contempt application to the opposite party within one week thereafter and keep a record thereof.

The opposite party shall comply with the directions of the writ court and intimate it to the applicant through the self-addressed envelop within a week thereafter.

With the aforesaid observations, this application is **disposed of** at this stage with liberty to the applicant to move a fresh application, if the order is not complied with by the opposite party within the stipulated time as aforementioned.

The party shall file computer generated copy of such order downloaded from the official website of High Court Allahabad, self attested by the applicant alongwith a self attested identity proof of the said person (preferably Aadhar Card) mentioning the mobile number to which the said Aadhar Card is linked.

The concerned Court/Authority/Official shall verify the authenticity of such computerized copy of the order from the official website of High Court Allahabad and shall make a declaration of such verification in writing.

Order Date :- 21.6.2021
A.K.Srivastava